

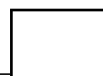
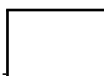


COMMERCIAL LISTING AGREEMENT TERMINATION

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COMMERCIAL LISTING TERMINATION BETWEEN THE UNDERSIGNED PARTIES CONCERNING THE PROPERTY LOCATED AT

- A. **Definitions:** "Owner" means the seller or landlord of the above-referenced Property. "Listing" means the above-referenced commercial listing agreement. In the event the Listing engages Broker to sublease the Property, then "Owner" means the tenant under an existing lease (Master Lease) of the Property.
- B. **Representation:** Owner represents that there are currently no negotiations pending or contemplated with anyone for the sale, lease, sublease, or exchange of the Property.
- C. **Termination Date:** The parties terminate the Listing at 11:59 p.m. on _____.
- D. **Termination Fees:**
- (1) Upon execution of this termination agreement, Owner will pay Broker a fee of \$_____ for services rendered through the termination date.
- (2) If Owner agrees to sell, lease, or sublease the Property on or before _____, by oral or written agreement or option, Owner will pay Broker at the time the Property is sold, leased, or subleased a fee of (*check all that apply*):
- ☐ (a) _____% of the sales price if Owner sells the Property.
- ☐ (b) _____% of the gross rent over the term of the lease or sublease.
- ☐ (c) _____.
- (3) The fees specified in Paragraph D(2) are not payable if Owner agrees to sell, lease, or sublease the Property to: _____.
- (4) If Owner is a tenant under a Master Lease and there is a termination of the Master Lease (or an assignment of all or part of Owner's interest in the Master Lease), Owner will pay Broker a fee of (*check all that apply*):
- ☐ (a) _____% of all base rents that Owner would have paid over the remaining term of the Master Lease (or the portion of term the Master Lease that was assigned) and the same percentage of the following items that Tenant would have paid over the term of the Master Lease (or the portion of term the Master Lease that was assigned): ☐ expense reimbursements ☐ _____.
- ☐ (b) _____.
- E. **Documents:** Broker may obtain any documents concerning the sale, lease, sublease, assignment, or termination from any party to the transaction. The parties to the transaction are hereby authorized to deliver the documents to Broker.
- F. **Release:** Except for the promises and representation in this document, Owner and Broker release each other from **all** obligations under or related to the Listing (including but not limited to the protection period clause which will no longer apply).



Owner: _____

By: _____

By (signature):

Printed Name: _____

Title: _____ Date: _____

By: _____

By (signature):

Printed Name: _____

Title: _____ Date: _____

Broker:

Broker / Company Name: _____

_____ License No. _____

By (signature):

Printed Name: _____

Title: _____ License No. _____

Date: _____